

Opinion of SOTOMAYOR, J.

before it “involve[d] no special factors counselling hesitation,” such as a question concerning federal fiscal policy. *Id.*, at 396.

This Court has twice extended the cause of action first articulated in *Bivens*: first to a Fifth Amendment due process claim for sex discrimination, see *Davis v. Passman*, 442 U. S. 228 (1979), and then to an Eighth Amendment deliberate indifference claim for failure to provide proper medical attention, see *Carlson v. Green*, 446 U. S. 14 (1980). In *Davis*, *Carlson*, and subsequent cases, the Court built on *Bivens*’ inquiry to develop a two-step test for determining whether a *Bivens* cause of action may be “defeated.” *Carlson*, 446 U. S., at 18. First, the Court considered whether, under the circumstances of a particular case, special factors counseled hesitation in allowing a private right of action to proceed. See, e. g., *Bivens*, 403 U. S., at 396; *Davis*, 442 U. S., at 246; *Carlson*, 446 U. S., at 18; *Bush v. Lucas*, 462 U. S. 367, 377–380 (1983). Second, the Court considered whether “Congress has provided an alternative remedy which it explicitly declared to be a *substitute* for recovery directly under the Constitution and viewed as equally effective.” *Carlson*, 446 U. S., at 18–19; see also, e. g., *Davis*, 442 U. S., at 246–247; *Bush*, 462 U. S., at 377–378; *Wilkie v. Robbins*, 551 U. S. 537, 550 (2007) (describing this two-step test). Where, for example, Congress crafted an “elaborate remedial system that has been constructed step by step, with careful attention to conflicting policy considerations,” *Bush*, 462 U. S., at 388, this Court concluded that “it would be inappropriate . . . to supplement that regulatory scheme with a new judicial remedy,” *id.*, at 368; accord, *Schweiker v. Chilicky*, 487 U. S. 412, 414 (1988). Applying this two-step test, the Court has declined to extend *Bivens* beyond situations like

attempt to resist an unlawful entry or arrest by resort to the local police; and a claim of authority to enter is likely to unlock the door as well.” *Ibid.*